

liability only arises if a defendant violates an independent legal duty and the type of harm that ensues was not reasonably contemplated or accounted for by the contractual parties.” (*Id.* at 37.)

Ultimately, the Court found that a plaintiff can assert an independent claim of fraudulent concealment in the performance of the contract. (*Id.* at 38.) However, the Court noted that Rattagan’s claims were based on fraud committed during the contractual relationship but allegedly outside the parties’ contractual rights and obligations. (*Id.* at 41, n. 12.) The Court stated as it had granted of *Dhital* regarding fraudulent inducement by concealment claims under the Act and declined to address the issues in *Rattagan*. (*Ibid.*)

Based on *Rattagan*, the economic loss rule does not bar Plaintiff’s claims, which arise out of the course of the contractual relationship discussed above. The Court **DENIES** the motion on these grounds as well.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506375	THE HUNTINGTON NATIONAL BANK VS ANNUIT COEPTIS TRANSFER INC.	MOTION FOR ORDER FOR SERVICE OF SUMMONS AND COMPLAINT: (1) UPON THE SECRETARY OF STATE; AND (2) BY PUBLICATION

Tentative Ruling: GRANT